



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 7555 (EXTENSION)
THIRD REVISION September 15, 1983

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 7555 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

OCT 24 1994

J. Suzanne Hedgereth
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Provost Bulk Transport, Inc.
Ville d'Anjou, Quebec, CN
(U.S. AGENT: National Resident Agent Service Incorporated
Philadelphia, PA)

July 18, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.

EXPIRED



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400 Seventh Street S.W.
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DOT-E 7555
(FOURTH REVISION)

1. Provost Bulk Transport, Inc., Anjou Quebec Canada (U.S. Agent: National Resident Agent Service Incorporated, Wayne, Pennsylvania), is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark and sell the packaging described in paragraph 7 below for use in the transportation of the hazardous materials described in paragraph 3 below in commerce subject to the limitations and special requirements specified herein. This exemption authorizes use of non-DOT specification cargo tanks made from non-metallic materials and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Provost Bulk Transport, Inc.'s application dated May 27, 1996 submitted in accordance with 49 CFR 107.105.
3. HAZARDOUS MATERIALS (Descriptor and class). Class 8 materials authorized to be transported in a lined MC 312 cargo tank that are compatible with cargo tank material specifically identified to and acknowledged in writing by the Office of Hazardous Materials Exemptions and Approvals (OHMEA) prior to first shipment.
4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic description as appropriate. When transporting waste materials, the shipping name must be preceded by the word "waste."
5. REGULATION AFFECTED. 49 CFR Part 173, Subpart F, as applicable.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification fiberglass reinforced plastic (FRP) cargo tank circumferentially reinforced by means of balsa sandwich construction, having a design pressure of 40 psig with a safety factor of seven. Maximum operating pressure is 15 psig. Tanks must be constructed in accordance with Transport Equipment Inc. drawing TEI 1100 dated October 2, 1977, and technical data supplied with Provost Cartage, September 30, 1977 and May 10, 1983 letters on file with the OHMEA. Tanks must be in compliance with DOT Specification MC-312 (49 CFR 178.340 and 178.343) cargo tank except as follows:

- a. 178.340-10(b)(1) - on the metal certification plate must be "DOT-E 7555."
- b. 178.340-10(c) - The manufacturer's certificate or test data retained by the motor carrier must be appropriately modified to reflect compliance with the terms of this exemption.
- c. 178.343-2(a)
178.340-3 - Type of material does not apply. Instead, tank shell, heads and fittings must be constructed of FRP in accordance with data on file with the OHMEA.
- d. 178.343-5(a) - A bottom opening closed with an FRP flange is permitted; otherwise paragraph (b) of this subsection applies.
- e. 178.340-5 - Not applicable.
- f. 178.340-7(a) - Reinforcement provided by the FRP-BALSA-FRP sandwich construction may be substituted for the circumferential reinforcement prescribed in 49 CFR 178.340-7 provided the resultant reinforcement produces a structural integrity at least equal to that prescribed in 49 CFR 178.340-4(b).

8. SPECIAL PROVISIONS.

- a. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR 171-180.
- b. Tanks over 12 years old are disqualified for service.
- c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

d. Each cargo tank must be reinspected and retested in accordance with 49 CFR 180.407(c) as prescribed for DOT Specification MC-312 cargo tanks.

e. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 7555."

f. As stipulated in 49 CFR Section 180.405(b), no cargo tank may be marked or certified after August 31, 1995, to the MC 312 specification in effect on December 30, 1990.

9. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

10. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving fire, explosion or the package and shipments made under the terms of this exemption.

11. EXPIRATION DATE. July 31, 1998.

Issued at Washington, D.C.:

Marilyn J. Morris

for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

September 3, 1996
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA